

TAB 15



Board of Education Report

File #: Min-003-22/23, **Version:** 1

Minutes for Board Approval (Min-003-22/23)

September 13, 2022, Regular Closed Session, 9:00 a.m.

December 13, 2022, Regular Closed Session, 9:00 a.m.

BOARD OF EDUCATION OF THE CITY OF LOS ANGELES
Governing Board of the Los Angeles Unified School District

REGULAR BOARD MEETING MINUTES

(Including Closed Session Items)

333 South Beaudry Avenue, Board Room

9:00 a.m., Tuesday, September 13, 2022

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The Los Angeles Board of Education acting as the Governing Board of the Los Angeles Unified School District met in regular session on Tuesday, September 13, 2022, at the Administrative Offices, Board Room, 333 South Beaudry Avenue, Los Angeles, California.

Mr. Michael McLean, Executive Officer of the Board of Education called the meeting to order at 9:04 a.m.

The following Board Members were present: Dr. George J. McKenna III, Mr. Scott Schmerelson, Mr. Nick Melvoin, Ms. Jackie Goldberg, Ms. Ortiz-Franklin and Board President Kelly Gonez. Ms. Mónica García was absent.

Superintendent Alberto M. Carvalho was present.

CLOSED SESSION ITEMS (Purpose and Authority)

Mr. McLean announced that the following items would be discussed in closed session:

CLOSED SESSION ITEMS (Purpose and Authority)

Tab 1. Personnel (Government Code Section 54957)

Employee Discipline/Dismissal Release

Superintendent's Evaluation

Public Employment
Chief of Police

Tab 2. Conference with Labor Negotiators (Government Code Section 54957.6)

Negotiator: Dr. Murphy and Mr. DiGrazia

Employee Organizations:

Associated Administrators of Los Angeles
California School Employees Association
Los Angeles County Building and Construction Trades Council
Los Angeles School Police Association
Los Angeles School Police Sergeants and Lieutenants Association
Service Employees International Union, SEIU Local 99
Teamsters
United Teachers Los Angeles
District Represented Employees and Contract Management Personnel

Negotiator: Ms. Navera Reed
Unrepresented Employee:
Chief of Police

Tab 3. Student Discipline Matters (Education Code Sections 48918[c], [f])

PUBLIC SPEAKING

The following speakers addressed the Board on the subjects indicated:

Tab 1: Personnel Matters

- David Tokofsky (Personnel Matters, And Other Issues)
- Carl Petersen (Personnel Matters, And Other Issues)

Public Comment

- Nancy Worsham (Vaccine Mandate)
- Rosalba Villanueva Kelly (Vaccine Mandate)
- Dhun May (Vaccine Mandate)

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The Board recessed the public portion of the closed session meeting at 9:22 a.m. Closed session discussion began at 9:29 a.m. and ended at 12:29 p.m. Dr. George J. McKenna III, Mr. Scott Schmerelson, Mr. Nick Melvoin, Ms. Jackie Goldberg, Ms. Ortiz-Franklin and Board President Kelly Gonez were present. Ms. Mónica García was absent.

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The Board reconvened the public portion of the closed session meeting at 1:00 p.m.

The following Board Members were present: Dr. George J. McKenna III, Ms. Mónica García, Mr. Scott Schmerelson, Mr. Nick Melvoin, Ms. Jackie Goldberg, Ms. Ortiz-Franklin and Board President Kelly Gonez.

Mr. McLean announced the following reportable actions as a result of the closed session discussion:

- The Board of Education approved the expulsion of students in case numbers 008-22/23, 009-22/23, 010-22/23, 011-22/23, and 012-22/23 with the recommended dispositions.

The vote was 6 ayes and 1 absent, Ms. García.

- The Board of Education further approved the conditional enrollment of the students in case numbers 004A-22/23, 005A-22/23, and 006A-22/23 with the recommended dispositions.

The vote was 6 ayes and 1 absent, Ms. García.

- The Board of Education authorized the dismissal of 2 Classified employees for Non-Compliance with the Vaccine Mandate.

The vote was 6 ayes and 1 absent, Ms. García.

- The Board of Education appointed Steven Zipperman in the position of Chief of Los Angeles School Police with a term ending June 30, 2023. Terms and conditions will be available upon the finalization of the agreement.

The vote was 6 ayes and 1 absent, Ms. García.

ADJOURNMENT

On motion by Mr. Melvoin, seconded by Ms. Goldberg, and by general consent the meeting was adjourned at 1:02 p.m.

APPROVED BY THE BOARD:

KELLY GONEZ
PRESIDENT

MICHAEL A. MCLEAN
EXECUTIVE OFFICER OF THE BOARD

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BOARD OF EDUCATION OF THE CITY OF LOS ANGELES
Governing Board of the Los Angeles Unified School District

REGULAR BOARD MEETING MINUTES

(Including Closed Session Items)

333 South Beaudry Avenue, Board Room

9:00 a.m., Tuesday, December 13, 2022

[Back to Order of Business](#)

The Los Angeles Board of Education acting as the Governing Board of the Los Angeles Unified School District met in regular session on Tuesday, December 13, 2022, at the Administrative Offices, Board Room, 333 South Beaudry Avenue, Los Angeles, California.

Mr. Michael McLean, Executive Officer of the Board of Education called the meeting to order at 9:08 a.m.

The following Board Members were present: Dr. George J. McKenna III, Mr. Scott Schmerelson, Mr. Nick Melvoin and Ms. Jackie Goldberg. Ms. Ortiz-Franklin and Board President Kelly Gonez were absent.

Superintendent Alberto M. Carvalho was present.

PUBLIC SPEAKING

The following speakers addressed the Board on the subjects indicated:

Tab 1: Student Discipline Matters

- David Tokofsky

Public Comment

- Angie Gomez, Friends of GALA
- Verenice Miron, Parent
- Isabel, Parent
- Jenna Schwartz, Parent
- Ray, Former Teacher
- Maria Daisy Ortiz, Parent Activist

OPEN SESSION ITEMS

**ADMINISTRATION OF OATH OF OFFICE TO THE NEW
AND RE-ELECTED BOARD MEMBERS**

The Oath of Office was administered to re-elected Board Member Nick Melvoin, by Student Board Member Nate Shin of North Hollywood High School.

The Oath of Office was administered to newly elected Board Member Dr. Rocío Rivas, by the Honorable Jackie Goldberg, Board Member District 5. Dr. Rivas was joined by family and friends.

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The Board recesses the meeting at 10:15 a.m. The meeting reconvened at 11:05 a.m. Dr. George J. McKenna III, Dr. Rocío Rivas, Mr. Scott Schmerelson, Mr. Nick Melvoin and Ms. Jackie Goldberg were present. Ms. Ortiz-Franklin and Board President Kelly Gonez were absent.

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CLOSED SESSION ITEMS (Purpose and Authority)

Mr. McLean announced that the following items would be discussed in closed session:

CLOSED SESSION ITEMS (Purpose and Authority)

1. Student Discipline Matters (Education Code Section 48918[c][f])
2. Personnel (Government Code Section 54957)

Public Employment

Senior Administrator, IT Customer Support
Chief Risk Officer
Director of Transportation

Superintendent's Evaluation

3. Conference with Legal Counsel

Pending Litigation (Government Code Section 54956.9[d][1])

Jane Doe v. Los Angeles Unified School District
Los Angeles Superior Court Case No.: 22STCV04661

De La Torre ES/Pimentel Litigation
Los Angeles Superior Court Case Nos.:
22STCV14175, 22STCV24357, 22STCV26867

Existing Litigation (Government Code Section 54956.9[d][1])

James Lacy, et al. v. City and County of San Francisco, et al.
San Francisco Superior Court Case No.: CPF-22-517714

4. Conference with Labor Negotiators (Government Code Section 54957.6)
Negotiators: Dr. Murphy and Mr. DiGrazia
Employee Organizations:

Associated Administrators of Los Angeles
California School Employees Association
Los Angeles County Building and Construction Trades Council
Los Angeles School Police Association
School Police Management Union
Service Employees International Union, SEIU Local 99
Teamsters
United Teachers Los Angeles
District Represented Employees and Contract Management Personnel

Negotiator: Devora Navera Reed
Unrepresented Employees:

Senior Administrator, IT Customer Support
Chief Risk Officer
Director of Transportation

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The Board recessed the public portion of the closed session meeting at 11:07 a.m. Closed session discussion began at 11:15 a.m. and ended at 1:40 p.m. Dr. George J. McKenna III, Dr. Rocío Rivas, Mr. Scott Schmerelson, Mr. Nick Melvoin and Ms. Jackie Goldberg were present. Ms. Ortiz-Franklin and Board President Kelly Gonez were absent.

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The Board reconvened the public portion of the closed session meeting at 1:57 p.m.

The following Board Members were present: Dr. George J. McKenna III, Dr. Rocío Rivas, Mr. Scott Schmerelson, Mr. Nick Melvoin and Ms. Jackie Goldberg. Ms. Ortiz-Franklin and Board President Kelly Gonez were absent.

Mr. McLean announced the following reportable actions as a result of the closed session discussion:

- The Board of Education approved the expulsion of students in case numbers 022-22/23, 023-22/23, 024-22/23, 025-22/23, and 028-22/23 with the recommended dispositions.

The vote was 5 ayes, 2 absent, Ms. Ortiz Franklin and Ms. Gonez

- The Board of Education approved the expulsion of the student in case numbers 026-22/23 and 027-22/23, with suspended enforcement and an amended term of expulsion contingent upon completing identified contingencies.

The vote was 5 ayes, 2 absent, Ms. Ortiz Franklin and Ms. Gonez

- The Board denied enrollment of the students in case number 010A-22/23.

The vote was 5 ayes, 2 absent, Ms. Ortiz Franklin and Ms. Gonez.

- The Board of Education authorized the settlement in the case of Jane Doe v. Los Angeles Unified School District, Los Angeles Superior Court Case No.: 22STCV04661. Terms and conditions will be available upon the finalization of the agreement.

The vote was 5 ayes, 2 absent, Ms. Ortiz Franklin and Ms. Gonez.

- The Board of Education authorized the settlement in the case of De La Torre ES/Pimentel Litigation Los Angeles Superior Court Case Nos.: 22STCV14175, 22STCV24357, 22STCV26867. Terms and conditions will be available upon the finalization of the agreement.

The vote was 5 ayes, 2 absent, Ms. Ortiz Franklin and Ms. Gonez.

- The Board of Education approved an employment agreement with Mary Lu Camacho in the position of Senior Administrator, IT Customer Support with a term ending June 30, 2024. Terms and conditions will be available upon the finalization of the agreement.

The vote was 5 ayes, 2 absent, Ms. Ortiz Franklin and Ms. Gonez.

- The Board of Education approved an employment agreement with Dawn Watkins in the position of Chief Risk Officer with a term ending June 30, 2024. Terms and conditions will be available upon the finalization of the agreement.

The vote was 5 ayes, 2 absent, Ms. Ortiz Franklin and Ms. Gonez.

- The Board of Education approved an employment agreement with Daniel Kang in the position of Director of Transportation with a term ending June 30, 2024. Terms and conditions will be available upon the finalization of the agreement.

The vote was 5 ayes, 2 absent, Ms. Ortiz Franklin and Ms. Gonez.

ADJOURNMENT

On motion by Ms. Goldberg, seconded by Mr. Melvoin, and by general consent the meeting was adjourned at 1:59 p.m.

APPROVED BY THE BOARD:

NICK MELVOIN
VICE PRESIDENT

MICHAEL A. MCLEAN
EXECUTIVE OFFICER OF THE BOARD

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PUBLIC HEARINGS